

JP MORGAN CHASE BANK N.A. v BURNELL

24CF14691

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

Plaintiff JP Morgan Chase Bank ("Plaintiff") sued Defendant Nicole M. Burnell ("Defendant") for the collection of a debt. Thereafter, Defendant filed an Answer. Now before the Court is Plaintiff's motion to deem admitted the matters specified in the Plaintiff's Requests for Admission ("RFAs").

On January 8, 2025, Plaintiff served by mail its first set of requests for admissions on Defendant. (Declaration of Gregory Parks ("Parks Decl.") ¶ 2, Ex. 1.) On or about February 28, 2025, Plaintiff's counsel attempted a meet and confer by sending a letter to Defendant regarding the outstanding discovery and offering additional time to respond. (Parks Decl. ¶ 4, Ex. 2.) As of the filing of Plaintiff's motion, Defendant has not responded to the letter or provided any responses to the RFAs. Defendant has also not filed any opposition to the Plaintiff's motion.

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the

motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Code Civ. Proc. § 2033.280(c).)

Defendant has not served any response and has not provided any evidence to the court that the failure is a result of mistake, inadvertence, or excusable neglect.

Accordingly, Plaintiff’s motion is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign Plaintiff’s submitted Proposed Order.

CAPITAL ONE N.A. v ADAMS

24CF14747

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

Plaintiff Capitol One ("Plaintiff") sued Defendant Steven J. Adams ("Defendant") for the collection of a debt. Thereafter, Defendant filed an Answer. Now before the Court is Plaintiff's motion to deem admitted the matters specified in the Plaintiff's Requests for Admission ("RFAs").

On 02/14/2025, Plaintiff served by mail its first set of requests for admissions on Defendant. (Declaration of Gregory Parks ("Parks Decl.") ¶ 2, Ex. 1.) Requests were due within 30 days of receipt. As of the Plaintiff's motion, Defendant has not responded to the letter or provided any responses to the RFAs. Defendant has also not filed any opposition to the Plaintiff's motion.

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the